SAAS SUBSCRIPTION AGREEMENT

Cloud Software Vendor Standard Terms

SECTION 1. SUBSCRIPTION GRANT AND USAGE RESTRICTIONS

Provider grants Customer a non-exclusive, non-transferable subscription right to access and use the SaaS Platform during the Subscription Term solely for internal operations. Customer shall not reverse engineer, decompile, or create derivative works from the Platform.

SECTION 2. SERVICE LEVEL AGREEMENT (SLA) AND UPTIME

Provider commits to a 99.9% Monthly Uptime Percentage. If Provider fails to meet this SLA, Customer's sole and exclusive remedy shall be service credits equal to 5% of monthly fees for each 1% of downtime, not to exceed 20% of monthly billing.

SECTION 3. DATA PRIVACY AND SECURITY COMPLIANCE

Provider shall implement reasonable technical and organizational safeguards in accordance with GDPR and CCPA standards. In the event of a confirmed security incident affecting Customer Data, Provider shall notify Customer within seventy-two (72) hours of verification.

SECTION 4. ANNUAL FEES AND AUTO-RENEWAL

Subscriptions automatically renew for successive 12-month periods unless either party provides written notice of non-renewal at least sixty (60) days prior to the expiration of the current Term. Subscription fees shall increase by 7% annually upon renewal.

SECTION 5. MUTUAL CONFIDENTIALITY

Each party agrees to safeguard the disclosing party's Confidential Information with the same degree of care it uses for its own confidential assets, but not less than reasonable care. Obligations survive for five (5) years following agreement expiration.

SECTION 6. LIMITATION OF LIABILITY

Provider's total aggregate liability arising out of or related to this Agreement shall be capped at the total amount paid by Customer in the three (3) months preceding the incident giving rise to liability, not to exceed $5,000 USD.

SECTION 7. AUDIT AND INSPECTION RIGHTS

Provider grants Customer the right to conduct an independent security audit once annually upon thirty (30) business days advance written notice, subject to customary non-disclosure restrictions.

SECTION 8. GOVERNING LAW

This Agreement shall be governed by the laws of the State of Delaware, with disputes resolved via binding American Arbitration Association (AAA) arbitration located in Wilmington, Delaware.